

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1136

Introduced by Dungan, 26.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Political Subdivisions Tort Claims Act;
- 2 to amend section 13-905, Reissue Revised Statutes of Nebraska; to
- 3 require political subdivisions to identify authorized recipients of
- 4 tort claims; to provide for tolling of certain deadlines; and to
- 5 repeal the original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 13-905, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 13-905 (1) All tort claims under the Political Subdivisions Tort
4 Claims Act and sections 16-727, 16-728, 23-175, 39-809, and 79-610 shall
5 be filed with the clerk, secretary, or other official whose duty it is to
6 maintain the official records of the political subdivision, or the
7 governing body of a political subdivision may provide that such claims
8 may be filed with the duly constituted law department of such
9 subdivision.

10 (2)(a) A political subdivision shall maintain on the home page of
11 its website a notice describing the official or law department authorized
12 to receive such claims. The notice shall identify the official or law
13 department by name and title and provide a mailing address.

14 (b) The filing of a claim with the official or law department
15 identified on such website shall constitute substantial compliance with
16 subsection (1) of this section.

17 (c) The failure of a political subdivision to maintain accurate and
18 up-to-date information as required by this subsection shall toll the
19 deadline for making a claim in writing and the deadline for bringing a
20 suit under sections 13-919 and 13-920.

21 (3) It shall be the duty of the official with whom the claim is
22 filed to present the claim to the governing body.

23 (4) All such claims shall be in writing and shall set forth the time
24 and place of the occurrence giving rise to the claim and such other facts
25 pertinent to the claim as are known to the claimant.

26 **Sec. 2.** Original section 13-905, Reissue Revised Statutes of
27 Nebraska, is repealed.